

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

Present:  
**Mr. Justice Md. Moinul Islam Chowdhury**

**Civil Revision No. 1933 of 2013**

Abul Kalam being dead his legal heirs:-  
1(Ka). Parvin Akhtar and others.

----- Defendant-appellant-petitioners

=Versus=

Md. Noor Nabi

---- Plaintiff-respondent-opposite-party

Mr. A. J. Mohammad Ali, with  
Mr. Sayed Quamrul Hossain, Advocates

----- For the petitioners.

Mr. Md. Omar Faruk with

Mr. A.S.M. Moniruzzaman, Advocates.

----- For the opposite-party.

Heard on 30.01.2017, 31.01.2017 and

**Judgment on 27.02.2017**

At the instance of the present defendant-appellant-petitioners, Abul Kalam being dead his legal heirs 1(ka) Parvin Aktar and others, this Rule has been issued calling upon the opposite-party to show cause as to why the judgment and decree dated 10.04.2013 (decree signed on 15.04.2013) passed by the Joint District Judge, Noakhali, dismissing the Title Appeal No.44 of 2012 and thereby affirming those dated 15.02.2012 of the First Additional Assistant Judge, Sadar, Noakhali decreeing Title Suit No.28 of the 2008 (previously Title Suit No.50 of 1999) should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite-party as the plaintiff filed the Title Suit No.50 of 1999 in the Court of the learned Assistant Judge, Additional Court No.1, Noakhali for declaration of title and recovery of khas possession of the land measuring .0137 decimals on the northern side of total land measuring .04 decimal situated in Dag No.3024 MRR khatian No.436 and D.S. khatian No.473, at 183 Ahladinagar Mouza, P.S. previous Begumgonj, District-Noakhali.

The plaint case in short is that the original owners of this land was Anandamoyi Banikka and Bidda Sundari Banikka, who owned the land upon their shares and the D.S. khatian was correctly in their names, subsequently, the land was succeeded by Modon Mohan Banikka and Gobinda Chandra Banikka, who sold the land to one Aminullah Miah by a sub-kabala deed dated 17.04.1944 and the said Aminullah constructed a tin shed shop and let the shop on rent and the record of right during S.A. and MRR were correctly recorded in his name. Aminullah created a deed by way of Osionnama in the name of his son Nur Nabi, who exchanged the land with the present plaintiff-opposite-party namely Noor Nabi by the Exchange Deed No.6588 dated 04.07.1996. The said Nur Nabi also transferred his share in favour of the present plaintiff-opposite-party.

It is further stated that the disputed plot No.3024 was surrounded by plot Nos.3022, 3023 and 3025. The plaintiffs had been working in Saudi Arabia, but on 07.06.1999, when he came back and found that the present defendant has broken a shop in the plot No.3024 and had been constructing a 4 storied building upon the land measuring 0137 decimals of the southern part of the plot No.3024, which he started in the year of 1998 by dispossessing the present plaintiff, he then approached the Rajagong Union Gram Adalat which passed an order on 31.07.1999 directing to handover the land within 30 days to the plaintiff, but the present defendant-petitioner failed to comply the direction to handover the possession which is mentioned as 'kha' schedule.

The present petitioner as the defendant filed a written statement contending, inter alia, that the aforementioned land is a homestead measuring .04 decimals in dag No.3024, which was known as place of Razagonj Bazar. One Syed Sultan Alam Chowdhury, who filled up a pond on the said dag by earth and constructed shops thereupon. Subsequently, a bazar was established upon the land there was an alleyway between the Dag Nos.3022 and 3023 adjacent to plot No.3024 and such attachment was made before the year of 1940. The present plaintiff was given .04 decimals of land not only from the dag No.3024 but also from 3023. The defendant bought .04 decimals out of the adjacent plot No.3023 and 3024 from one

Abdul Matin by a sale deed dated 02.12.1967 and another measurement of land  $\frac{3}{4}$  decimal from one Golam Rahman by a deed dated 06.04.1989. The defendant has been owning and possessing  $1\frac{1}{2}$  decimals and the other dag numbers were purchased by Golam Rahman. The remaining land in Dag No.3023 was purchased by others including Golam Rahman, Suja Miah, Tofayel Ahmed, Amir Hossain and Narayan Chandra Manik, who have been running their own respective shops after obtaining utility services from the respective authorities including Electricity, Gasline, Telephone as well as other required licences for running the said shops. The defendant petitioner has been possessing the land in both Dag Nos.3023 and portion of 3024 which has been for more than 12 years which has given him a right of possession regarding the land measuring  $1\frac{1}{2}$  decimals situated in plot Nos. 3023 and 3024. A separate plot has been created being plot No.5525 for the land measuring 0137 decimals in the name of the present defendant-petitioner.

After hearing the parties and considering the depositions of the witnesses of the respective parties, the learned Assistant Judge, Additional Court No.1, Sadar, Noakhali decreed the suit by his judgment and decree dated 15.02.2012. Being aggrieved the present-petitioner, as the appellant preferred the Title Appeal No.44 of 2012 in the Court of the learned District Judge, which was heard by the learned joint District Judge,

Noakhali on transfer, who by her judgment dated 10.04.2013 disallowed the appeal. This revisional application has been filed challenging the said impugned judgment and decree of the appellate Court below and the Rule was issued thereupon.

Mr. A. J. Mohammad Ali, the learned Senior Advocate appearing with the learned Advocate Mr. Sayed Quamrul Hossain for the present petitioner submits that the learned Court below by misreading and non-considering the evidences on record most wrongly and non-judicially passed the impugned judgment and decree and thus has committed an error of law resulting in an error in the decision occasioning a serious failure of justice which is not at all sustainable in law and is liable to be set aside.

The learned Advocate further submits that the defendant bought  $\frac{3}{4}$  decimals out of .04 decimals adjacent to plot Nos.3023 and 3024 from one Abdul Matin by sab-kabala deed No.9612 dated 02.12.1967 and  $\frac{3}{4}$  decimals from plaintiff's uncle Golam Rahman by sab-kabala deed No.2944 dated 06.04.1989 total  $1\frac{1}{2}$  decimals which has been proved by the defendant but the learned Court below miserably failed to take this important point into consideration and passed the impugned judgment and decree and thus has committed error of law resulting in an error in the decision occasioning a serious failure of justice which is liable to be set aside.

The learned Advocate also submits that the present-plaintiff-opposite-party claimed title from the son of Aman Ullah, who cannot transfer the land as he could not acquire the title upon the suit land measuring 0137 decimals as he claimed ownership by a receipt and no document for the suit land and there has been no evidence for dispossession from the land, as such, there is no cause of action, thus the Rule should be made absolute. He also submits that the petitioner has been in possession for more than 12 years, thus he has acquired right under the principle of adverse possession as per the provision of the Limitation Act.

The Rule has been opposed by the present opposite-parties by filing a counter-affidavit and a supplementary counter-affidavit contending inter alia, that the plaintiff submitted in the Trial Court the certified copy of D.S. khatian No.473 and MRR khatian No.436 and they were marked as exhibits 1 and 1(ka) respectively, that MRR khatian was recorded in the name of Aminullah for .04 decimals in the entire plot No.3024 which is still unchallenged. That sab-kabala deed No.2828 dated 17.04.1944 was marked as exhibit No.5, that the plaintiff also submitted Osiotnama deed being No.24 dated 10.11.1992, deed of exchange bearing No.6588 dated 04.07.1996, mutation khatian, rent receipt, Union Parishad tax receipt, award of the arbitration council, and those were marked as exhibits Nos.1(Ga), 2 series, 3 series, 6, 7 and 8 in the trial Court in order to prove

the case upon the land measuring .04 decimals in the dag No.3024. It is further contended that the suit land measuring 0137 decimals is a part of the said measuring .04 decimals which has been correctly recorded in the name of the present plaintiff-opposite-party but the present defendant-petitioner purchased land from Abdul Matin in Dag No.3024 but the said Abdul Matin was an owner of Dag No.3023 only, therefore, the present petitioner has no right to construct a building upon the land of the plaintiff-opposite-party on Dag No.3024.

Mr. Md. Omar Faruk, the learned Advocate appearing with the learned Advocate Mr.A.S.M. Moniruzzaman for the opposite-party submits that the plaintiff could prove its own case in the trial Court to the satisfaction by producing and adducing sufficient evidence, as such, the learned trial Court decreed the suit and the learned Appellate Court below concurrently found in favour of the present plaintiff-opposite-party by disallowing the appeal preferred by the defendant-petitioner, as such, the Rule has been obtained by mislead the Court, therefore, the Rule is liable to be discharged.

The learned Advocate also submits that after considering the report submitted by the Advocate Commissioner dated 28.11.2000 and also considering the exchange deed dated 04.07.1996 has admitted by the defendant No.1 his deposition. No question of adverse possession can arise

under the provision of Limitation Act, therefore, the Rule does not call for any interference upon the impugned judgment. The learned Advocate submits that this land is admittedly situated in Rajagonj Bazar within the District Noakhali, but the Government never claimed any entitlement or any question as to the provision of law and the land was never mutated in the name of the Government, therefore, the property does not belong to periphery of hat-bazar.

Considering the above submissions made by the learned Advocates appearing for the respective parties and considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment passed by the learned appellate Court below and also considering the lower Court records, it appears to me that the present opposite-party as the plaintiff filed a title suit claiming title and khas possession upon the suit land measuring 0137 decimals of land on the south side of total land .04 decimal in Dag No.3024 MRR khatian No.436 and D.S. Khatian No.473 Mouja No.183, Ahladinagar, P.S. Begumgonj, District-Noakhali. It further appears that this suit land is situated in a bazaar in the name of private persons and the suit land has been mutated in the name of private persons who are the present plaintiff-opposite party and the defendant.



The plaintiff-opposite-party claimed that the suit land was originally belonged to one Anondomoy Bonik and Bidda Sundory Bonik, which was subsequently inherited by Modon Mohon Bonik and Gobindo Chandra Bonik who sold to Aminullah on 17.04.1944 and he constructed shops upon the suit lands and the Osiotnama dated 10.11.1992 was executed by Aminullah in favour of his sons Nur Nabi. The said Nur Nabi entered into an exchange deed with another Md. Noor Nabi by the exchanged deed dated 04.07.1996 to exchange their respective lands which is subject matter of this Rule.

The vital questions in the instant cases whether the plaintiff could prove its own case on the standard of balance of probability, whether the suit was barred by the limitation or defect of parties and whether the present petitioner has acquired any rights by way of adverse possession.

In order to answer the above vital issues I am taking first the matter of proving the suit by the plaintiff upto the satisfaction of the Courts below. In the regard, I have carefully examined the exhibits filed by the present plaintiff in the trial Court in particular exhibits 1 and 1(ka) which are D.S khatian and MRR khatian in the name of the predecessors of the plaintiff-opposite-party and there are other exhibits regarding Osiotnama executed by the said Aminullah on 17.04.1944 exhibit 1(kha) khajna receipts 2 series and exhibits 3,4,6,7, and 8 in order to substantiate the plaintiffs claimed

upon the land measuring .04 decimal Dag No.3024 in the abovementioned schedule land. I have also examined the witnesses statement particularly P.W.1 and D.W.1 wherein the witnesses deposed that Dag No.3024 has been owned by the present plaintiff opposite-party and the present defendant-petitioner entered into the land of the present opposite-party and started construction of a building thereupon in absence of the present plaintiff which has been proved in the trial Court and it was affirmed by the appellate Court below as to the given facts.

However, the present defendant-petitioner claimed that he purchased land total 1½ decimals by the deeds dated 02.12.1967 and 06.04.1989 exhibit 'cha' and exhibit 'chha' respectively. Regarding the land in the Dag No.3023. Despite the above documents, the present defendant-petitioner started constructing a building in Dag No.3024 where the petitioner has no right to enter into the possession or construct any structure thereupon. In view of the above, I consider that the learned trial Court committed no error of law by concluding to decree the suit and the learned appellate Court below also committed no error of law came to a conclusion to disallow the appeal of the present petitioner.

Another vital question is that which there the present-petitioner acquired any right under Article 144 of the Limitation Act. I have examined the document including the possession and construction of the

suit land and I found that by operation of Article 144 of the Limitation Act a right of adverse possession can only arise if the right claimed by the defendant can become adverse to the plaintiff if the possession is hostile, notaries, uninterrupted and continues. In this regard, our Apex Court laid down the above requirements for claiming right by way of adverse possession. However, I am not satisfied that the present defendant-petitioner stated that he started construction of building in the year of 1990 and the plaintiff made his claim in the year of 1998, therefore, it cannot be said that the present petitioner acquired right on the basis of the above provision of law.

Regarding the claim of defect of parties by the present defendant-petitioner, I am satisfied that the ownership and entitlement claimed by the present plaintiff against only the defendant who has created shadow upon the entitlement of the plaintiff-opposite-party by entering into the Dag No.3024 without any legal basis.

After examining the judgment and decree passed by the learned Courts below, I found that the learned trial Court by his judgment dated 15.02.2012 came to a lawful conclusion to decree the suit on the basis of the following finding :-

“On perusal of the kabla submitted by the deft. It is found that in no kabla there is the mention of plot 3024 rather 3023 is there. D.W.1 in his cross-examination admitted that he has no

document in support of his title to the plot No.3024. The deft. also could not prove his possession to his disputed land. He has not submitted any rent receipt for plot 3024. The D.W.1 admitted this in his cross. D.W.2 in his cross-examination said that he does not know how much is possessed by the deft. D.w.3 in the cross-examination admitted that the plaintiff had been in possession through tenants.”

The learned appellate Court below concurrently found against the present –defendant-petitioner and disallowed the appeal on the basis of the following findings :-

“ আপীল শুনানীকালে আপীলকারী পক্ষের বিজ্ঞ কৌশলী বলেন, নিম্ন আদালতের বিজ্ঞ বিচারক মোকদ্দমাটিতে সিদ্ধান্ত গ্রহণ কালী কমিশনারের প্রতিবেদন বিবেচনা করিনি। কমিশনারের প্রদত্ত প্রতিবেদন বিবেচনা করলে বিবাদীর ৩০২৪ দাগের ভূমিতে পূর্ববর্তীদের আমল থেকেই দখলের দাবি এবং বাদী ৩০২৪ ও ৩০২১ দাগের ভূমিতে দখল প্রমাণিত হত। নথী পর্যালোচনায় দেখা যায় যে, নালিশী ভূমি সম্পর্কে মূল মোকদ্দমায় বাদিপক্ষের আবেদনের প্রেক্ষিতে ইং ২৮/১১/২০০০ তারিখ সিভিল কোর্ট কমিশনার নিতাই চন্দ্র দাস প্রতিবেদন দাখিল করেন। তার বিরুদ্ধে আপত্তি দাখিলের জন্য বিবাদীপক্ষ একাধিকবার সময় নিয়েও কোন আপত্তি দাখিল করেননি। বিবাদীপক্ষের দরখাস্তের প্রেক্ষিতে সিভিল কোর্ট কমিশনার দিলিপ মজুমদার ০১/০৪/২০০২ তারিখ প্রতিবেদন দাখিল করেন। যার বিরুদ্ধে বাদীপক্ষ আপত্তি দাখিল করেন এবং ইং ২৮/০৪/২০০২ তারিখের প্রতিবেদন গৃহীত হয়। ইং ২৮/১১/২০০০ তারিখের প্রতিবেদন কমিশনার সুনির্দিষ্ট ভাবে নকসা অংকন করে উল্লেখ করেন ৩০২৩ দাগের চার তলা দালান ৩০২৪ দাগের ১<sup>৭</sup>/<sub>১০</sub> শতক ভূমি গ্রহণ করিছে।

ইং ০১/০৪/২০০২ তারিখের প্রতিবেদন দৃষ্টি দেখা যায় তাত্ত্বিক ৩০২৪ দাগের সংলগ্ন ৩০২১ দাগ মর্মে প্রতিবেদন দেয়া হয়েছে এবং ৩০২১ দাগ থেকে ৩০২৪ দাগ যাতায়াতের পথ আছে মর্মে প্রতিবেদনে উল্লেখ আছে। অত্র মোকদ্দমার সামগ্রিক দালিলিক ও মৌখিক সাক্ষ্য থেকে সুস্পষ্ট ভাবে প্রমাণিত হয় বাদীপক্ষ ৩০২৪ দাগের ১ আনা ৪ শতক ভূমিতে মালিক ও দখলকার এবং বিবাদীপক্ষ ৩০২৩ দাগের ১<sup>২</sup>/<sub>১০</sub> শতক ভূমিতে মালিক। বিবাদীপক্ষ ৩০২৪ দাগ ১৯৪০ সালের পূর্ব থেকে পূর্ববর্তীদের আমল থেকে দখল প্রাপ্ত হওয়ার দাবি প্রমাণিত হয়নি। বরং তিনি বাদীপক্ষ নালিশী ভূমিতে দখল আসার পর বিল্ডিং এর ছাদ করিছেন মর্মে স্বীকার করেন। বিবাদী বাদীপক্ষের দখলীয় ৩০২৪ দাগ জোর পূর্বক দখল করে বিল্ডিং নির্মাণ করিছেন তা প্রমাণিত হয়েছে। দুইজন সিভিল কোর্ট কমিশনার ৩০২৪ দাগ বিবাদীর বিল্ডিং এর অবস্থান আঁচ মর্মে প্রতিবেদন দাখিল করিছেন।

এই অবস্থায় ৩০২৪ দাগ বিবাদী বেআইনী ভাবে দখল করিছেন মর্মে বাদীপক্ষের দাবি এডভোকেট কমিশনারগণের প্রতিবেদন থেকেও প্রমাণিত হয় এবং তা বাদীর দাবিকেই প্রতিষ্ঠিত করে। ফলে নিম্ন আদালতের বিজ্ঞ বিচারক কমিশনারের

প্রতিবিদন বিব্রিচনা না করলিও তার দ্বারা সিদ্ধান্তের কোন রদ বদল হওয়ার সম্ভাবনা নাই এবং তা দ্বারা ন্যায় বিচারও ব্যাহত হয়নি।

আপীল শনানীকালে আপীলকারীপক্ষের বিজ্ঞ কৌশলী বাদীর বায়া আমিন উল্ল্যাহর বায়া মদনমোহন বনিক্য ও গোবিন্দ চন্দ্র বনিক্যের স্বত্ব সম্পর্কে প্রশ্ন উত্থাপন করিল। কিন্তু লিখিত বর্ণনায় আমিন উল্ল্যাহ ও বাদীর ৩০২৪ দাগী মালিকানা দখল স্বীকার করিতা আপীল অস্বীকার করিত পাব্রি না।”

In view of the above decisions by the Courts below, I am satisfied that the learned Courts below have not committed any error of law, in particular, the learned appellate Court below.

Accordingly, I do not find merit in this Rule.

In the result, the Rule is discharged.

The interim order of stay granted upon the operation of the impugned judgment and decree is hereby recalled and vacated.

The office is directed to communicate this judgment and decree and also send down the lower court records immediately.